Background

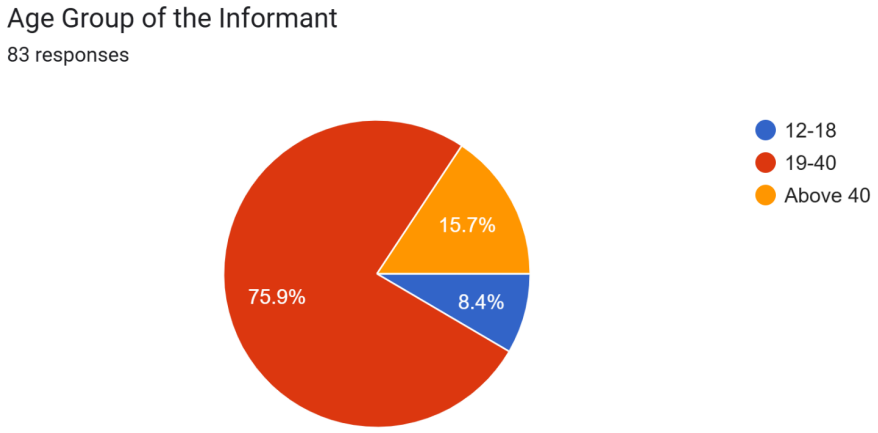
In order to assess the existing level of public awareness and understanding of estate planning and succession mechanisms in India, we designed an anonymous survey and circulated through a digital questionnaire among various channels. The survey was intentionally kept anonymous instrument to encourage candid responses. This is also because questions related to personal property and inheritance are personal and often sensitive in nature. The questions were curated to cover key dimensions of inquiry, including familiarity with estate planning, understanding of specific legal mechanisms such as wills, trusts, gifts, waqf, and family settlements, as well as perceptions regarding the complexity of succession laws in India. The full set of questions administered through the survey has been reproduced in the Appendix for reference.

Objective and Scope

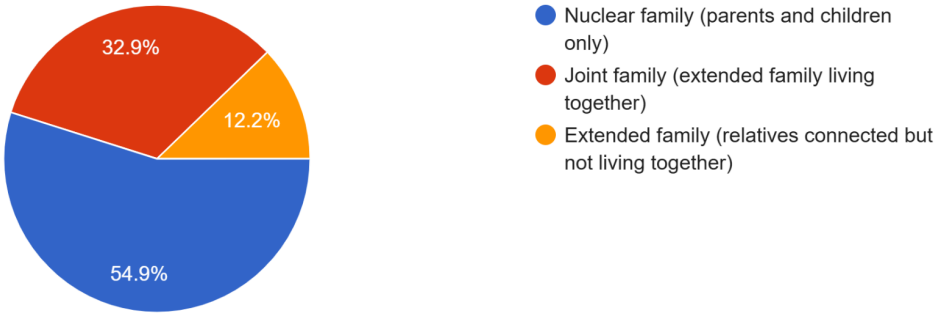
This study examines how individuals in India understand estate planning and succession. It focuses on whether awareness extends beyond wills to other legal mechanisms such as gifts, trusts, waqf, and family settlements. It also evaluates whether such awareness leads to informed choices and actual engagement. The central concern of the questionnaire is whether legal complexity prevents meaningful participation. The findings are used to assess the need for a simplified digital platform.

Respondent Profiles:

75.9% of the respondents belonged to the age group of 19-40 years. The dataset is thus heavily skewed toward younger adults. 63.9% of the people have heard of estate planning. At first glance, awareness appears relatively high. However, further questions and stats reveal reveals that this awareness is rather superficial rather than substantive. The relevant graphs are attached as follows:



What type of family do you belong to?
82 responses

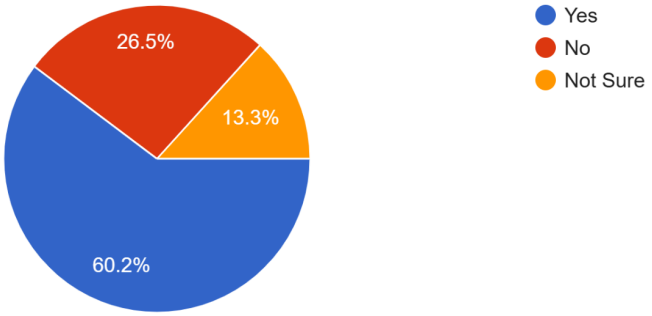


Awareness of Legal Mechanism

As highlighted, the respondents have a mere superficial knowledge of the mechanism. This is evidenced by various following analysis.

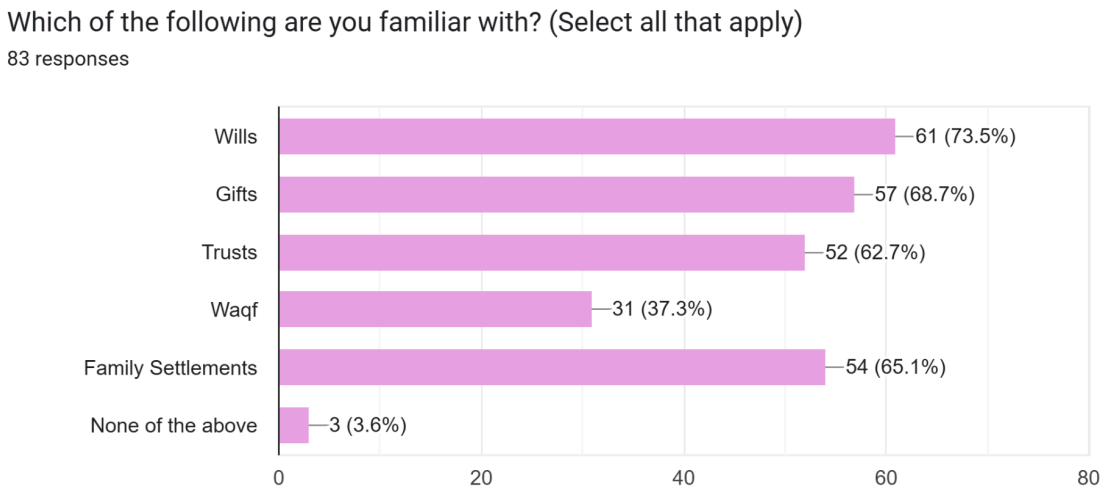
While 60.2% correctly acknowledge that property can be transferred without a will, a substantial 39.8% either deny this or remain unsure, revealing a persistent conceptual gap. Thus, awareness operates at a declaratory level. The responses are attached here:

Do you know if the property can be transferred without a will?
83 responses

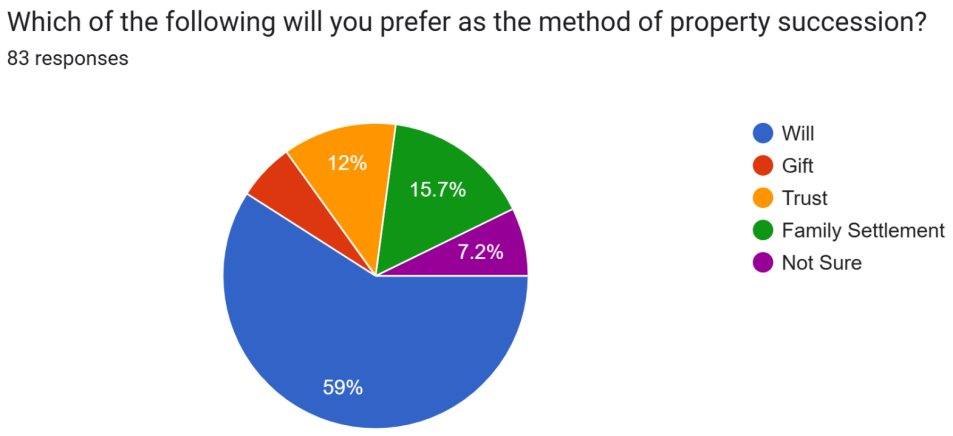


Furthermore, there is a lack of awareness of alternatives of legal mechanism. Wills are recognized by 73.5% (61 respondents), making them the most visible instrument of succession. In contrast, awareness declines for other mechanisms: gifts 68.7%, family settlements 65.1%, and trusts 62.7%, while waqf is recognized by only 37.3%.

This hierarchy of awareness indicates that there is a structural imbalance in public legal consciousness. Even though a majority report familiarity with multiple mechanisms, the relative dominance of wills suggests that these alternatives are not equally internalized as viable or practical options.

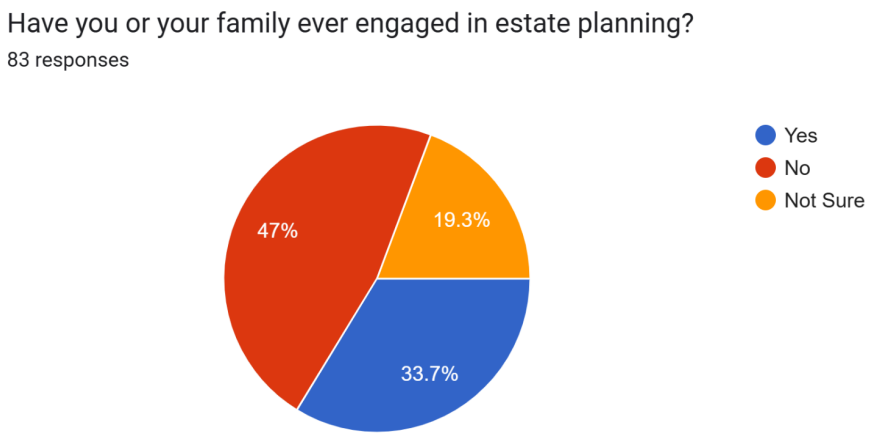


As a result of this normative unfamiliarity, the response in preference reflect the same. Even though over 60% of respondents are aware of trusts and family settlements, only a fraction express a preference for them. This disparity suggests that wills function as the default legal imagination of succession, not necessarily because they are always optimal, but because they are most widely recognized.



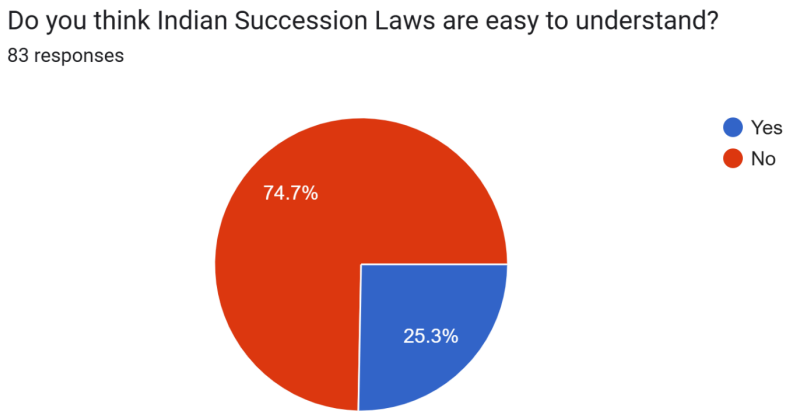
The Awareness Gap

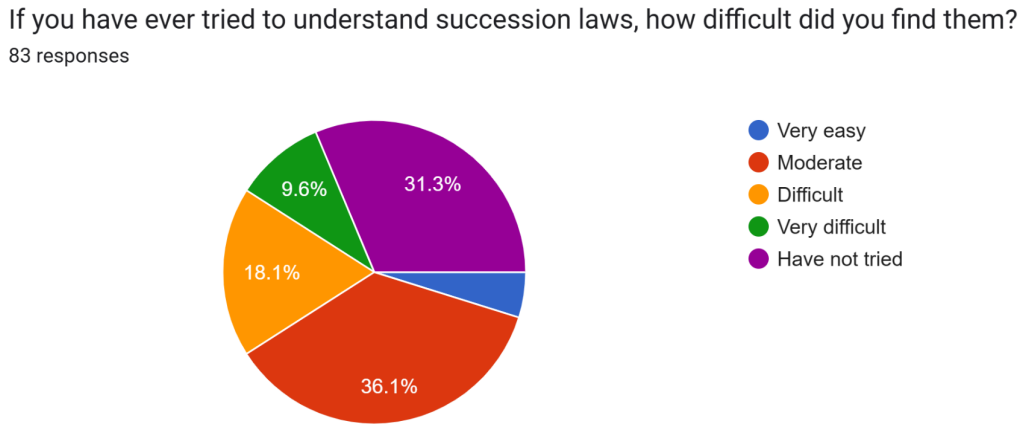
This remains the central inquiry for our project. While 63.9% have heard of estate planning, only 33.7% report that they or their families have engaged in any estate planning activity. In contrast, 47% have not engaged at all, and 19.3% remain unsure.



One of the most decisive findings of the study concerns the perceived complexity of succession laws. A substantial 74.7% of the respondents explicitly state that Indian succession laws are not easy to understand. This perception is reinforced by experiential responses: while only 4.8% found the law "very easy," a combined 27.7% found it "difficult" or "very difficult," and 36.1%

described it as “moderate.” Notably, 31.3% have never attempted to understand succession laws at all.





These figures point to a major accessibility problem. The issue is not only that the law is perceived as difficult, but that a significant portion of individuals are discouraged from engaging with it altogether. The coexistence of difficulty and non-engagemen suggests that complexity and difficulty in understanding acts as a pre-emptive barrier.

Conclusion

The empirical data reveals a strong and suggestive pattern. It tells us that awareness is present but it is shallow. It explains how preference is shaped by familiarity rather than informed choice, and engagement is constrained by complexity of the existing laws. The dominance of wills exemplifies how legal plurality is reduced in practice due to informational asymmetry.

Simultaneously, the fact that nearly three-fourths of respondents find succession laws difficult highlights the structural barriers that inhibit meaningful engagement.

Taken together, these findings strongly support the need for a simplified, digital interface that can translate complex legal frameworks into accessible and actionable knowledge. The problem, as the data makes evident, is not the absence of legal mechanisms, but the inaccessibility of their understanding.

In our project, this is the complexity that we aim to simplify!

If you want to take our survey, access it through the link attached here.